

6 & 7 GEO. 6. *Ministry of Health Provisional* Ch. xiii.
Order Confirmation (Wetherby District Water) Act, 1943.



CHAPTER xiii.

An Act to confirm a Provisional Order of the Minister of Health relating to the Wetherby District Water Company. [22nd July 1943.]

◦ **W**HEREAS under the provisions of the Gas and Water 33 & 34 Vict.
Works Facilities Act 1870 and the Gas and Water Works c. 70.
Facilities Act 1870 Amendment Act 1873 the Minister of 36. & 37 Vict.
Health has made a Provisional Order which needs confirmation c. 89.
by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which as amended is Order in set out in the schedule to this Act is hereby confirmed and schedule shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Provisional Short title.
Order Confirmation (Wetherby District Water) Act 1943.

SCHEDULE.

WETHERBY DISTRICT WATER.

Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 to reduce the limits of supply of the Wetherby District Water Company and for other purposes.

THE MINISTER OF HEALTH in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

Short and collective titles. 1.—(1) This order may be cited as the Wetherby District Water Order 1943.

62 & 63 Vict. c. lxxii. 63 Vict. c. xvii. 4 Edw. 7. c. clxxxii. (2) The Wetherby District Water Act 1899 the Wetherby District Water Act 1900 the Wetherby District Water Order 1904 (confirmed by the Gas and Water Orders Confirmation Act 1904) and this Order may be cited together as the Wetherby District Water Acts and Orders 1899 to 1943.

Commencement of Order. 2. This Order shall come into operation on the first day of October nineteen hundred and forty-three :

38 & 39 Vict. c. 55. Provided that if the Harrogate Order 1943 (made by the Minister of Health in pursuance of sections 297 and 303 of the Public Health Act 1875) is not confirmed by Parliament on or before the said first day of October this Order shall instead of coming into operation on that date come into operation on the first day of January April July or October which shall first occur after that Order has been so confirmed.

Interpretation. 3. In this Order unless the context otherwise requires—
“ the undertakers ” means the Wetherby District Water Company ;

“ the map ” means the map prepared in triplicate sealed with the official seal of the Minister of Health and marked “ Map referred to in the Harrogate Order 1943 ” of which one copy has been deposited in the office of the Minister one copy has been deposited in the office of the undertakers and one copy has been deposited with the town clerk of the borough of Harrogate ; and

“ the commencement of this Order ” means the date on which this Order comes into operation.

6 & 7 GEO. 6. *Ministry of Health Provisional* Ch. xiii.
Order Confirmation (Wetherby District Water) Act, 1943.

4.—(1) In this section the expression “the excluded areas” Reduction of
means— limits of supply.

- (i) those portions of the former parishes of Kirkby Overblow and Ripton which were transferred to the borough of Harrogate by the County of York West Riding Review Order 1938 ;
- (ii) the parish of Kirkby Overblow in the rural district of Wetherby as constituted at the commencement of this order ; and
- (iii) so much of the parish of Spofforth with Stockeld in the rural district of Wetherby as is coloured red on the map.

(2) As from the commencement of this Order the excluded areas shall cease to be within the limits of supply of the undertakers as defined in section 5 (Limits of Act) of the Wetherby District Water Act 1899 and all the powers rights privileges authorities duties and obligations of the undertakers with respect to the supply of water in the excluded areas shall cease and determine.

5. All costs charges and expenses of and incidental to the appli- Costs of Order.
cation for this Order and the preparation making and confirmation
of this Order shall be paid by the undertakers and may in whole or
in part be defrayed out of revenue.

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